

Gouri Shanker Singh v. State of U.P. and Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 11 September 2024 · 2024:AHC-LKO:62845-DB · WRIT - C No. 6497 of 2024 · **Disposed as infructuous; connection reported already given.**

HEADNOTE

Writ for time-bound energisation under the Rs.35 per square foot scheme of the Electricity Supply Code (Ninth Amendment), 2017, and for a decision on the representation of 12 June 2024, disposed of after counsel for the licensee produced meter-reading documents and stated that the connection had been given and the grievance resolved. No clause of the Code was construed.

FACTUAL SUMMARY

Gouri Shanker Singh applied for an electricity connection and paid the full preliminary estimate demanded by respondent no. 3, but supply was not given. He sought a mandamus that the licensee meet its duty under the Rs.35 per square foot scheme of the Electricity Supply Code (Ninth Amendment), 2017 within a fixed time, and that respondent no. 2 decide his representation of 12 June 2024. On 30 July 2024 the Court allowed a week for a short counter on the difficulty of laying the line for him and his neighbours.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Ninth-Amendment-2017

new connection after payment of preliminary estimate

HOLDING

On 11 September 2024 the petitioner was unrepresented. Counsel for respondents nos. 2 and 3 produced meter-reading documents of the connection given to him and stated that the grievance about giving the connection had been resolved. The writ was disposed of on that statement, without construing the Rs.35 per square foot scheme or directing a decision on the representation of 12 June 2024. ¶ 2

FLAG Prayer names the Ninth Amendment, 2017 and the Rs.35/sq. ft. Yojana; no clause number is stated or applied.

PRINCIPLE TAGS

procedural-disposal-no-construction The petition was disposed on the licensee's statement, backed by meter-reading papers, that the connection had been given and the grievance resolved. The Court laid down no construction of the Supply Code. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RESPONDENT NO. 3 WAS BOUND, UNDER THE RS.35 PER SQUARE FOOT SCHEME OF THE ELECTRICITY SUPPLY CODE (NINTH AMENDMENT), 2017, TO ENERGISE THE CONNECTION WITHIN A FIXED TIME AFTER PAYMENT OF THE PRELIMINARY ESTIMATE.

Not examined; the petition was disposed on the statement that the connection problem had been resolved. ¶ 2

NOT DECIDED — THE PETITIONER'S REPRESENTATION DATED 12 JUNE 2024 TO RESPONDENT NO. 2.

No direction to decide the representation was issued. ¶ 2